

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Valentina Concha-Toro	Team: Squad #12	CCRB Case #: 201902893	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 12/10/2018 6:47 PM	Location of Incident: In front of 219 West 145th Street	18 Mo. SOL 1/25/2021	Precinct: 32		
Date/Time CV Reported Wed, 03/27/2019 8:05 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/03/2019 11:19 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Boyce	09681	953698	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Asad Sardar	01074	962086	032 PCT
2. POM Sterling Medina	06806	964651	032 PCT
3. POF Milagros Torres	13241	935864	032 PCT
4. POM Eric Stovall	06916	947520	032 PCT
5. POM David Schrammel	25621	946552	032 PCT
6. SGT John Keane	04227	935094	032 PCT
7. SGT Wilson Ramos	04892	931911	032 PCT
8. POM Kevin Viola	18818	962154	105 PCT
9. POM Kevin Koziol	08357	961869	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Boyce	Abuse: Police Officer Michael Boyce stopped § 87(2)(b)	A . Unsubstantiated

Case Summary

On March 27, 2019, § 87(2)(b) submitted this complaint with the Internal Affairs Bureau (IAB) on behalf of himself and § 87(2)(b). On April 3, 2019, this complaint was received by the CCRB via log #19-12377.

At approximately 6:47 p.m. on December 10, 2018, § 87(2)(b) was standing outside of 219 West 145th Street in Manhattan and § 87(2)(b) entered the location. Police Officer Michael Boyce responded to a 9-1-1 call and approached § 87(2)(b). Police Officer Boyce stood in front of him along with additional officers and asked § 87(2)(b) if he had a knife (**Allegation A: Abuse of Authority—Stop, Unsubstantiated**). § 87(2)(b) told Police Officer Boyce he did, reached into his own pocket and gave it to Police Officer Boyce. Police Officer Boyce returned to his patrol vehicle. § 87(2)(b) exited 219 West 145th Street and was arrested. Police Officer Boyce returned § 87(2)(b)'s knife to him. § 87(2)(b) was neither arrested or issued a summons.

Body-worn camera was requested, and the request was returned with negative results. At the time of incident, body-worn cameras had not been issued to the subject officers.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Michael Boyce stopped § 87(2)(b)

It is undisputed that prior to the interaction with Police Officer Boyce, § 87(2)(b) had an interaction with an unknown male individual who alleged that he had urinated on the side walk. § 87(2)(b) had a knife, a hammer, a lock, and a handkerchief in his pockets. § 87(2)(b) had consumed alcohol prior to the incident. The unknown male individual called 9-1-1 and provided 9-1-1 with information regarding a knife. Police officers responded.

On April 16, 2019, § 87(2)(b) provided a telephone statement (Board Review 01) in addition to a statement when filing the complaint but was uncooperative with providing the CCRB with an in-person verified statement. § 87(2)(b) said that upon exiting the restaurant, he saw approximately six police officers with § 87(2)(b).

On May 1, 2019, § 87(2)(b) provided a telephone statement (Board Review 02). On May 28, 2019, § 87(2)(b) provided the CCRB with an in-person statement, but he did not present photo identification (Board Review 03). The telephone statement and the in-person interview provided by § 87(2)(b) were consistent.

§ 87(2)(b) stated that on December 10, 2018, at 6:47 p.m., he had been walking with § 87(2)(b) and was involved in a dispute with an unknown individual. § 87(2)(b) denied that he or § 87(2)(b) pulled out a knife during the dispute but did state that they both were carrying knives. § 87(2)(b) and § 87(2)(b) walked further down the block and § 87(2)(b) walked into a restaurant at 219 West 145th Street in Manhattan. § 87(2)(b) stood outside of the restaurant, facing away from the street and toward the restaurant. § 87(2)(b) saw multiple police vehicles park behind him. Police Officer Boyce walked toward § 87(2)(b) and stopped

in front of him. Approximately four to five other police officers stood behind and to the side of § 87(2)(b) surrounding him. Police Officer Boyce was the only officer who interacted with § 87(2)(b). Police Officer Boyce asked if he had a knife. § 87(2)(b) replied that he did. Police Officer Boyce asked § 87(2)(b) where he had it and § 87(2)(b) said he had it in his front pocket. Police Officer Boyce asked § 87(2)(b) to retrieve the knife and § 87(2)(b) placed his own hand into his pocket and removed the knife. § 87(2)(b) gave Police Officer Boyce the knife. Police Officer Boyce informed § 87(2)(b) that they had received a call regarding threats and a knife. Police Officer Boyce walked away toward his patrol vehicle. The four to five other officers remained around § 87(2)(b). Later during the incident § 87(2)(b) was informed by an officer on scene that § 87(2)(b) was being arrested because he had been robbing individuals with his knife. Later during the incident Police Officer Boyce returned the knife to § 87(2)(b).

On July 26, 2019, Police Officer Boyce provided his testimony to the CCRB (Board Review 04). On August 15, 2019, Police Officer Koziol provided his testimony to the CCRB (Board Review 05). During his testimony Police Officer Boyce stated that it was his job to interact with § 87(2)(b) and no other officer interacted with him, and because § 87(2)(b)'s description matched Police Officer Boyce's pedigree, the allegations were only pleaded against Police Officer Boyce.

Police Officers Boyce and Koziol testified that upon arriving at the incident location Police Officer Boyce contacted the 9-1-1 caller who arrived at the incident location. The 9-1-1 caller informed Police Officers Boyce and Koziol that he confronted § 87(2)(b) who was urinating on the street and § 87(2)(b) threatened him with a knife. Police Officers Boyce and Koziol both spoke to the 9-1-1 caller prior to interacting with any other civilian.

Police Officer Boyce testified that upon arriving he saw a § 87(2)(b) standing outside of the restaurant. The 9-1-1 caller pointed to § 87(2)(b) and informed Police Officer Boyce that § 87(2)(b) was involved and had been with § 87(2)(b) but he was not the individual with the knife. Police Officer Boyce approached § 87(2)(b) and was the only officer who interacted with § 87(2)(b). § 87(2)(b) informed Police Officer Boyce that he and § 87(2)(b) were trying to get home and that § 87(2)(b) was intoxicated. Police Officer Boyce walked away and returned to his patrol vehicle to speak with the 9-1-1 caller, who confirmed that § 87(2)(b) was not the individual that had threatened him with the knife. Police Officer Boyce denied that he or any officer asked § 87(2)(b) if he had anything on his person. Police Officer Boyce denied that he or any officer asked § 87(2)(b) if he had a knife. Police Officer Boyce did not recall that § 87(2)(b) placed his hands inside his pockets during the incident.

Police Officer Koziol stated that the 9-1-1 caller pointed out § 87(2)(b) who was standing outside. Police Officer Koziol did not recall another individual at the incident location other than the 9-1-1 caller and § 87(2)(b). Police Officer Koziol was presented with a photograph of § 87(2)(b) and he did not recognize him from the incident nor did § 87(2)(b) look familiar. Police Officer Koziol did not recall that any officer approached § 87(2)(b) or asked if he had a knife. Police Officer Koziol did not recall an officer ask § 87(2)(b) to produce a knife.

The Event Information has noted that the 9-1-1 caller stated that one Hispanic male pulled out a knife and he was walking with another Hispanic male (Board Review 06). The information provided on the Event Information is a summary of the information provided to the 9-1-1 operator during the 9-1-1 call and the information provided to the responding officers during the radio dispatch (Board Reviews 07 and 08).

§ 87(2)(g)
[REDACTED]

According to People v. De Bour 40 N.Y.2d 210 (1976) (Board Review 09) to stop an individual, an officer must have reasonable suspicion that the individual has committed, is committing or is about to commit a felony or misdemeanor. An individual is stopped when there is a reasonable belief that their freedom of movement is restricted.

According to NYC Administrative Code 14-174 (Board Review 10) during a stop of a person an officer shall provide an explanation of the reasons for such law enforcement activity.

§ 87(2)(g)
[REDACTED]

[REDACTED] Police Officer Boyce stated that the interaction he and § 87(2)(b) had yielded information regarding § 87(2)(b) including where they were going, and that § 87(2)(b) was intoxicated. Police Officer Boyce denied asking § 87(2)(b) about his possession of a weapon.

According to People v. De Bour an officer must have reasonable suspicion of criminality regarding the individual being stopped. § 87(2)(g)
[REDACTED]

Given the above, it is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

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- This is the first CCRB complaint § 87(2)(b) has been a party (Board Review 11).
- This is the first CCRB complaint § 87(2)(b) has been a party (Board Review 12).
- Police Officer Boyce has been a member-of-service for six years and has one prior CCRB allegation in one case which was not substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) refused to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- Notice of Claim search requests were submitted to the New York City Comptroller's Office on August 20, 2019, and on August 28, 2019, an email was received advising that there was no Notice of Claim filed regarding the incident (Board Review 15).
- § 87(2)(b) was arrested as a result from the incident, but his arrest has since been sealed. No further information was obtained by the investigation.

Squad No. 12

Investigator:	Signature	Print Title & Name	Date
Squad Leader:	Signature	Print Title & Name	Date
Reviewer:	Signature	Print Title & Name	Date